

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 08/14/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and
SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

[https://contracosta-courts-
ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1](https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1)

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C23-00162

CASE NAME: LAURA HEARNE VS. JAGDISH SAINI

***HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS AS TO PLAINTIFFS FIRST AND SECOND CAUSES OF ACTION**

FILED BY: SAINI, JAGDISH K.

TENTATIVE RULING:

Before the court is the unopposed motion of Defendants JAGDISH K. SAINI, SONIA G. SAINI, VANDANA LAUGANI and DILIP LAUNGANI's ("Defendants") motion for judgment on the pleadings as to Plaintiff LAURA HEARNE's ("Plaintiff") first and second causes of action.

Defendants have attempted to meet and confer prior to filing the instant motion, and plaintiff filed to respond to their mailed request to discuss this motion. See Ex. B attached to Decl. Of Justice Tecson in

Support of Defendants' Motion for Judgment on the Pleadings as to Plaintiff's First and Second Causes of Action (Tecson Dec.), filed April 7, 2026.

The basis for a motion for judgment on the pleadings must appear on the face of the challenged pleading or be based on facts which a court may judicially notice. (Code of Civil Procedure (CCP) Section 438.) A court may consider a party's admission which cannot be reasonably controverted, even if it negates an express allegation of the pleading. (*Pang v. Beverly Hospital Inc.* (2009) 79 Cal.App. 4th 968, 989.)

Plaintiff alleges she was injured during her tenancy at Defendants' property. Her complaint alleges three causes of action: (1) General negligence; (2) Premises Liability; and (3) Retaliatory Evidence.

On February 4, 2026, the Court granted Defendant's motion for an order deeming Defendant's Requests for Admissions (RFA), Set One, admitted, and awarding Defendant sanctions to be paid by Plaintiff. The court grants the Defendant's Request for Judicial Notice of that order and of the requests for admissions deemed admitted. Those admissions include:

1. That Defendants were not negligent in owning and managing the Subject Property during Plaintiff's tenancy (RFA 1);
2. That Plaintiff has no evidence that Defendants were negligent in owning and managing the Subject Property during Plaintiff's tenancy (RFA 2);
3. That Defendants did not cause injury to Plaintiff during Plaintiff's tenancy (RFA 3); and
4. That Plaintiff has no evidence that Defendants caused injury to Plaintiff during Plaintiff's tenancy (RFA 4).

Tecson Dec., Paragraph 4, Ex. A.

The court agrees that in view of these admissions, Plaintiff will be unable to prevail on the first or second causes of action as a matter of law.

On June 20, 2025, the Court granted Defendants' Motion for Judgment on the pleadings as to Plaintiff's third cause of action for Retaliatory Eviction.

The Defendants' motion for judgment on the pleadings as to Plaintiff LAURA HEARNE's ("Plaintiff") first and second causes of action is **granted without leave to amend**.

Judgment shall be entered in favor of Defendants.

2. 9:00 AM CASE NUMBER: C24-01401
CASE NAME: WILLIAM WU VS. WANAG TAHATAN-BEY
***HEARING ON MOTION IN RE: ENTRY OF JUDGMENT**
FILED BY: WU, WILLIAM H.
TENTATIVE RULING:

Plaintiff William Wu's motion to enforce the settlement agreement is **granted**.